Dear Reseller,

At Nutraceutical Corporation dba Better Being Co. ("Better Being"), we are committed to you—the reseller partners that help our company empower people to live healthier, live happier, and live better by delivering superior products that put people in more control of their wellness. To protect our family of wellness brands (available at https://www.betterbeing.com/our-brands/) and the integrity of our authorized distribution channels in the United States, Better Being is implementing an update to its U.S. Authorized Seller Program for the Better Being family of brands, effective October 1, 2024.

Among other benefits, our Authorized Seller Program will ensure that sellers of Better Being products understand and take the steps necessary to ensure product quality and provide the excellent customer service that is integral to the reputation of our brands. In addition, our Authorized Seller Program will assist us in identifying and taking action against unauthorized sellers that are harming you and consumers through the sale of damaged, diverted, and otherwise poor-quality products.

Your obligations under our new Authorized Seller Program are outlined in the **Better Being Co. Authorized Reseller Policy for the United States**, which is attached for your review. You are expected to comply with the Authorized Reseller Policy to be an "Authorized Reseller" of our products. The key features of the Authorized Reseller Policy are noted below:

- **Permissible Customers**: Better Being is committed to maintaining the integrity of its authorized distribution channels and to stopping the diversion of our products to unauthorized sellers. To this end, the Authorized Reseller Policy requires that you sell Better Being products solely to end users and not to persons or entities who intend to resell Better Being products.

- **Online Sales Restrictions**: **You may not sell Better Being products online without our prior written consent.** This prohibition includes your own e-commerce website, as well as sales through third-party online marketplaces such as Amazon, eBay, Target+, and Walmart Marketplace. Our rules regarding online sales will be strictly enforced. If you wish to apply for permission to sell online, please contact us at ASP@betterbeing.com for more information.

- **Ensuring Product Quality and Customer Satisfaction**: To ensure that the customers who purchase Better Being products have the best experience possible, the Authorized Reseller Policy outlines our expectations for the service you will provide to your customers. The Authorized Reseller Policy also describes certain steps you must take to maintain the quality of Better Being products until they reach end users.

Finally, Better Being has updated its unilateral Minimum Advertised Price Policy ("MAP Policy"), which applies to all authorized sellers of Better Being products in the United States. A copy of the MAP Policy, which will be effective on October 1, 2024, is attached.

Thank you for your careful attention to the attached documents and for your continued support of Better Being and the Better Being family of wellness brands. If you have any questions regarding the Authorized Reseller Policy or Authorized Seller Program, please contact us at ASP@betterbeing.com.

Sincerely,

Nutraceutical Corporation dba Better Being Co.

**BETTER BEING CO. AUTHORIZED RESELLER POLICY FOR THE UNITED STATES**
**Effective Date:** October 1, 2024

This Better Being Co. Authorized Reseller Policy for the United States ("Reseller Policy") is issued by Nutraceutical Corporation dba Better Being Co. ("Better Being") and applies to Authorized Resellers of Better Being brand of products available at https://www.betterbeing.com/our-brands/ ("Product(s)") in the United States of America. By purchasing Products from Better Being or an Authorized Better Being Distributor of the Products for retail sale, you ("Reseller") agree to adhere to the following terms. Until such status is otherwise revoked by Better Being in Better Being's sole and absolute discretion, Reseller shall be considered an "Authorized Reseller." This Reseller Policy supplements any then-current reseller agreement between you and Better Being and supersedes any previously-issued retailer or reseller policies from Better Being or its predecessors. Better Being may review Reseller's activities for compliance with this Reseller Policy, and Reseller agrees to cooperate with any such investigation, including, but not limited to, permitting inspection of Reseller's facilities and records related to the sale of the Products.

1. **Authorized Customers.** Reseller is authorized to sell Products only to End Users in its brick-and-mortar retail establishment(s) in the United States. An "End User" is any purchaser of the Products who is the ultimate consumer of the Products and who does not intend to resell the Products to any third party. Reseller shall not sell or transfer Products to any person or entity Reseller knows or has reason to know intends to resell the Products. Reseller shall not sell or transfer a quantity of the Products to any individual greater than that typically purchased for personal use. Reseller shall not sell, ship, or promote the Products outside the United States of America without Better Being's prior written consent.

2. **Online Sales. Reseller shall not offer for sale or sell Products on or through any website, online marketplace (including, but not limited to, Amazon, eBay, Target+, and Walmart Marketplace), mobile application, or other online forum without the prior written consent of Better Being, granted through execution by Better Being of the Better Being Co. Authorized Online Seller Agreement.** The terms of this Reseller Policy supersede any prior agreement between Better Being and Reseller regarding the sale of the Products on or through websites, mobile applications, online marketplaces, and other online forums. Any authorization previously granted to Reseller by Better Being to sell the Products on or through a website, mobile application, or other online forum is revoked.

3. **Sales Practices.** Reseller shall conduct its business in a reasonable and ethical manner at all times and shall not engage in any deceptive, misleading, or unethical practices or advertising at any time. Reseller shall not make any warranties or representations concerning the Products except as expressly authorized by Better Being. Reseller shall comply with all applicable laws, rules, regulations, and policies (a) applicable to Reseller's business and/or (b) related to the marketing and sale of the Products. Reseller shall represent the Products in a professional manner and refrain from any conduct that is or could be detrimental to the reputation of Better Being or the Products. Reseller shall not advertise Products not carried in inventory. Reseller shall only purchase Products from Better Being or Better Being's Authorized Distributors.

4. **Product Care, Customer Service, and Other Quality Controls.** Reseller shall comply with the Better Being Co. Product Care, Customer Service, and Other Quality Controls, attached as Exhibit A, as Better Being may amend from time to time.

5. **Intellectual Property.**

(a) Reseller acknowledges and agrees that Better Being or its licensors own all proprietary rights in and to the Better Being brands, names, logos, trademarks, service marks, trade dress,

copyrights, and other intellectual property related to the Products (the "Better Being IP"). Reseller is granted a limited, non-exclusive, non-transferable, revocable license to use the Better Being IP solely for purposes of marketing and selling the Products as set forth herein. This license will cease upon termination of Reseller's status as an Authorized Reseller. All goodwill arising from Reseller's use of the Better Being IP shall inure solely to the benefit of Better Being or its licensors.

(b) Reseller's use of the Better Being IP shall be in accordance with any guidelines that may be provided by Better Being from time to time and must be commercially reasonable as to the size, placement, and other manners of use. Better Being reserves the right to review and approve, in its sole discretion, Reseller's use or intended use of the Better Being IP at any time, without limitation. In marketing the Products, Reseller shall only use images of Products either supplied by or authorized by Better Being and shall ensure that all Product images and descriptions are accurate and up to date.

(c) Reseller shall not create, register, or use any domain name, social media screenname, or mobile application name that contains any Better Being product name or any trademark owned by or licensed to Better Being, nor a misspelling or confusingly similar variation of any Better Being product name or any trademark owned by or licensed to Better Being.

6. **Termination.** Better Being reserves the right to terminate Reseller's status as an Authorized Reseller with written or electronic notice. Upon termination of Reseller's status as an Authorized Reseller, Reseller shall immediately cease (i) selling the Products; (ii) acting in any manner that may reasonably give the impression that Reseller is an Authorized Reseller of Better Being Products or has any affiliation whatsoever with Better Being; and (iii) using all Better Being IP.

7. **Modification.** Better Being reserves the right to update, amend, or modify this Reseller Policy at any time. Unless otherwise provided, such amendments will take effect immediately, and Reseller's continued use, advertising, offering for sale, or sale of the Products, use of the Better Being IP, or use of any other information or materials provided by Better Being to Reseller will be deemed Reseller's acceptance of the amendments.

# EXHIBIT A

## BETTER BEING CO. PRODUCT CARE, CUSTOMER SERVICE, AND OTHER QUALITY CONTROLS

1. Comply with all instructions provided by Better Being regarding the storage, handling, shipping, disposal, or other aspect of the Products, including instructions provided on Product labels. Store Products in a cool, dry place, away from direct sunlight.

2. Sell Products in their original packaging. Relabeling, repackaging (including the separation of bundled Products or the bundling of Products), and other alterations to Products or their packaging are not permitted.

3. Do not remove, translate, or modify the contents of any label or literature on or accompanying the Products. Do not tamper with, deface, or otherwise alter any serial number, UPC code, batch or lot code, or other identifying information on Products or their packaging. Do not dilute Products.

4. Do not resell any Product that has been returned opened or repackaged.

5. Promptly upon receipt of the Products, inspect the Products and their packaging for damage, defect, broken seals, evidence of tampering, or other nonconformance (a "Defect"). If any Defect is identified, do not offer the Product for sale and promptly report the Defect to Better Being at consumerservices@betterbeing.com or 800-538-5888.

6. Inspect inventory regularly for expired or soon-to-be expired Products and do not sell any Products that are expired or that cannot be consumed prior to expiration dates. Destroy or dispose of expired or soon-to-be expired Products in accordance with instructions provided by Better Being and applicable law.

7. Be familiar with the special features of all Products marketed for sale and obtain sufficient Product knowledge to advise customers on the selection and proper use of the Products, as well as any applicable guarantee or return policy. Be available to respond to customer questions and concerns both before and after sale of the Products and respond to customer inquiries promptly.

8. Ensure that any third-party logistics provider engaged to store inventory of or fulfill orders for the Products is aware of and complies with all Product quality controls and customer service standards described herein or otherwise conveyed by Better Being. Ensure that any such third-party logistics provider stores all inventory of Products segregated by seller such that no Products provided to the third-party logistics provider are commingled with those owned by any third party. Better Being reserves the right to request additional information regarding the use of third-party logistics providers and such information must be provided promptly to Better Being. Cooperate with Better Being in investigating any concerns related to the Products that may relate to the use of a third-party logistics provider.

9. Cooperate with Better Being with respect to any Product tracking systems that may be implemented from time to time.

10. Cooperate with Better Being with respect to any Product recall or other consumer safety information dissemination efforts.

11. Implement commercially reasonable loss prevention and anti-diversion measures.

12. Report to Better Being any customer complaint or adverse claim regarding the Products and assist Better Being in investigating any such complaints or adverse claims.

13. Cooperate with Better Being in the investigation and resolution of any quality or customer service issues related to the sale of the Products, including disclosing information regarding Product sources, shipment, and handling.

**BETTER BEING CO. INTERNET MINIMUM ADVERTISED PRICE POLICY FOR THE UNITED STATES**
**Effective Date: October 1, 2024**

## 1. Purpose and Introduction

Nutraceutical Corporation d/b/a Better Being Co. ("Better Being Co."), on behalf of itself and its related entities, has adopted this unilateral Internet Minimum Advertised Price Policy ("Policy"), which applies to all Authorized Retailers, Authorized Resellers, and Authorized Distributors of Better Being Co. products in the United States ("Sellers") within the brands identified below ("Covered Products"). This Policy is intended to help ensure that all Sellers who are headquartered in the United States, or who place and receive Covered Product orders in these territories, or who market Covered Products to end-user consumers located in the United States via the World Wide Web, mobile application, or internet (collectively, "Internet") do so effectively and that end-user consumers of the Covered Products receive appropriate support.

Better Being Co. greatly values the efforts of its Sellers to market and sell its products and support our mutual customers and end-user consumers. We are confident that you understand our commitment to customer satisfaction and our need to communicate this Policy clearly and concisely. This Policy may be terminated or changed by Better Being Co. at any time in its sole discretion.

This Policy supersedes all prior Better Being Co. policies and/or representations regarding minimum advertised prices or resale prices for Covered Products applicable to any Seller. To the extent that any provision, term, or agreement governing the relationship between Better Being Co. and any Seller may be construed in a manner that is inconsistent with the terms of this Policy, the terms of this Policy control.

## 2. The Internet Minimum Advertised Price and Item Table

Better Being Co. is solely responsible for establishing the Internet minimum advertised price ("IMAP") and communicating the IMAP to all Sellers. This Policy has been unilaterally adopted by Better Being Co., and it informs Sellers of a unilateral Better Being Co. business decision. Better Being Co. is not seeking and will not accept agreement from any Seller to comply with the Policy. It is entirely within the discretion of the Seller to comply or not comply.

All Better Being Co. products are subject to this Policy, which may be updated from time to time at Better Being Co.'s sole discretion. Sellers are responsible for ensuring they are aware of the latest IMAP pricing for all advertising of the Covered Products.

Better Being Co.'s IMAP for all Covered Products is identified on an individual SKU basis in the IMAP Item Table available at bit.ly/bbcomap which may be updated from time to time at Better Being Co.'s sole discretion. The Policy applies to Better Being Co. products or brands later introduced and also still applies when Better Being Co.'s suggested retail prices are changed.

### 3. Internet Advertising and Advertisements

The terms "advertising" and "advertisement" include all promotional or pricing information related to Covered Products displayed through the Internet or a mobile application, including, but not limited to:

- Online newspapers
- Online catalogs
- Online magazines
- Online flyers
- Online brochures
- websites
- blogs
- social media
- affiliate marketing networks/comparison shopping engines
- seller-initiated text messages or emails to customers or prospective customers
- mobile/smart phone applications
- banner ads
- online product ads
- paid search ads
- pay-per-click ads
- display ads
- mobile ads
- product listing ads
- sponsored links
- ads in any other media in a digital format that is conveyed via the Internet
- any communication of an advertised price accessible by a web crawler

The terms "advertising" and "advertisement" do not include:

- Advertising communicated via means other than the Internet or mobile applications, such as signage and other pricing information displayed within a brick-and-mortar selling location; and
- Pricing information displayed at the Final Online Checkout Stage of a transaction is not considered "advertising" under this Policy. The "Final Online Checkout Stage" is the stage when the Covered Product is put into an online shopping cart that contains the customer's name, shipping address, email address, and payment information. Pricing information in the Final Online Checkout Stage must be obscured technically so that it is not retrievable by shopping and pricing engines and not displayed on search page results within the Seller's own website.

### 4. Policy Violations and Permissible Promotions

Better Being Co.'s policy is not to do business with any Seller that advertises the Covered Products at advertised prices below the IMAP or in any other way that would violate this Policy. This Policy applies only to *advertised* prices on the Internet and not to the prices at which products are sold.

While Sellers remain free to advertise and sell all Covered Products at any advertised price they deem appropriate, it is a violation of this Policy for a Seller to list or advertise the Covered Product(s) at an advertised price lower than the IMAP. **Such listings or advertisements that violate this Policy include, but are not limited to, the following examples:**

- Offering coupons, discounts, rebates, or other inducements that, when applied, result in an advertised price lower than the IMAP, including through use of a website-wide sale, promotional code, or other similar provision that can be applied to Covered Products.
- Bundling Covered Products with other products or services (whether made by or provided by Better Being Co. or another entity) in a manner that implies below-IMAP pricing for the bundled product(s).
- Strikeouts or strikethroughs of advertised pricing information for the Covered Products, "see price in cart," or other statements that suggest that a lower price for a Covered Product may be found at the Final Online Checkout Stage. Examples of such violations include "prices too low to mention," or "our manufacturer won't let us tell you the price," "click here for lower price," "add to shopping cart to see price," "log-in for price," "mouse over for price," "call for price," "email for a better Price," or an IMAP strike-through.
- Permitting any third party to alter the advertised price for any Covered Product.
- Advertising a free bottle, two-for-one, free gift cards, services, or merchandise with the purchase of a Covered Product(s).
- Advertising in a foreign currency with current exchange rates resulting in advertised pricing below IMAP for the Covered Product(s).
- Sending an unsolicited email with an advertised price lower than the IMAP for the Covered Product(s).
- Direct or indirect attempts to circumvent this Policy.

Advertisements that do <u>not</u> violate this Policy include the following examples:

- Advertising "free shipping." Further, the advertisement of a reduced-price shipping is not a violation of this Policy as long as such offer applies to all or almost all other products offered by a Seller in the same product category.
- That a customer may "call for price," "text for price," or "email for price" as long as no price is listed and no automated call, text message, or "bounce-back" email is used in response.
- Advertising without any prices.
- Featuring two or more Covered Products in the same ad, as long as the advertised price for each Covered Product is not below that Covered Product's IMAP (or, if two Covered Products are advertised at a single bundled advertised price, the combined advertised price is not below the combined IMAP for the two Covered Products). Note that Covered Products may not be combined with products from other brands.
- Stating a price orally, either in person or by telephone.
- Responding to an individual customer email asking about a price.
- Advertising discounts attributable to "Subscribe and Save," "Auto-ship and Save," "Repeat Delivery," or other subscription or auto-replenishment loyalty discount programs even if those discounts result in an advertised price below the IMAP.

## 5. This Policy Is Not An Agreement.

**This Policy does not constitute an agreement between Better Being Co. and any other entity**. Better Being Co. neither solicits nor will it accept any assurance of compliance with this Policy from any Seller or other party. Each Seller must independently choose whether to comply with the terms of this Policy. This Policy is not negotiable and will not be altered for any individual Seller. This Policy applies only to advertised prices and does not affect the prices that a Seller may charge for Covered Products.

## 6. IMAP Holidays.

From time to time, Better Being Co. may announce IMAP holidays or promotions that are applicable to all Sellers, during which periods a Seller that advertises a Covered Product in accordance with the terms of the authorized promotion will not be deemed to have violated this Policy. Better Being Co. will notify Sellers of any such authorized promotions, generally not fewer than 30 days in advance.

## 7. Non-compliance and Suspension Schedule

If Better Being Co. learns of a Seller's advertising that does not comply with IMAP, Better Being Co. will take the action listed in this Non-compliance and Suspension Schedule. These actions are not debatable or appealable and will not be changed based on a Seller's commitment regarding future practices. Better Being Co. will accept no assurance of compliance with this Policy from any Sellers or other party. Sellers should not communicate (to Better Being Co. or to other Sellers) their intentions regarding this Policy.

Better Being Co. will take the following actions against any Seller that fails to comply with this Policy with respect to the advertisement of any Covered Product:

1. For a Seller's first violation, Better Being Co. will notify the Seller in writing of such failure and Better Being Co. or the Authorized Distributor will immediately place the Seller's account on shipping hold for thirty (30) days for all Covered Products. Better Being Co. or the Authorized Distributor will revoke its acceptance of any pending orders, cancel any pending shipments to the Seller, and not accept any new orders from Seller during this 30-day period.
2. For a Seller's second violation during a 12-month period following the first violation, Better Being Co. will notify the Seller in writing of such failure and Better Being Co. or the Authorized Distributor will immediately place the Seller's account on shipping hold for ninety (90) days for all Covered Products. Better Being Co. or the Authorized Distributor will revoke its acceptance of any pending orders, cancel any pending shipments to the Seller, and not accept any new orders from Reseller during this 90-day period.
3. For a Seller's third violation during a 12-month period following the first violation, Better Being Co. or the Authorized Distributor will terminate its business relationship with the Seller. Better Being Co. or the Authorized Distributor will revoke its acceptance of any pending orders and cancel any pending shipments of the Covered Products to the Seller.

The Policy will be enforced by Better Being Co. in its sole discretion and with notice. Sellers have no right to enforce this Policy against other Sellers.

**8. Policy Administration.**

Better Being Co. may update, revise, suspend, terminate, reinstitute, or modify this Policy at any time in its sole discretion. Better Being Co. shall make any such modifications available to authorized Sellers. If Better Being Co. changes the IMAP on any Covered Product, it will endeavor to provide at least 14 days' notice to Sellers before such change takes effect.

No Better Being Co. employee or agent, including a sales representative, is authorized to modify, interpret, or grant exceptions to this Policy; solicit or obtain the agreement of any person to this Policy; or otherwise discuss any aspect of this Policy with any Seller, including that Seller's or any other Seller's compliance with the Policy.

The Better Being Co. IMAP Administrator is the only person authorized to communicate decisions regarding this Policy. Sellers with comments or questions may submit them in writing to mapadministrator@nutracorp.com.

**9. Brands Covered Under This Policy:**

The following brands, and any additional brands/products identified in the IMAP Item Table available at https://www.betterbeing.com/pages/map?sep24, if any, are covered under this Policy:

| | | |
|---|---|---|
| Action Labs | KAL | Nutra BioGenesis |
| AllOne | Life-Flo | Organix South |
| bioAllers | LifeTime | Pioneer |
| Body Gold | NatraBio | Solaray |
| Dynamic Health | Natural Balance | Theraneem (fka Theraneem |
| Emerita by Life-Flo (fka Emerita) | NaturalCare | Naturals) |
| | Natural Sport | Thompson |
| Herbs for Kids | Naturally Fresh (ZOLA | Veglife |
| Heritage Store | Naturals) | Vita Logic |
| Honey Gardens | Nature's Life | Zand |